

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
SHERNALERIA ECCLES, as Mother of ANTONIO
CASSEEM ARMSTRONG and proposed
Administrator of the Estate of ANTONIO CASSEEM
ARMSTRONG, and SHERNALERIA ECCLES,
Individually,

Plaintiff,

- against-

THE CITY OF NEW YORK, NYPD POLICE
OFFICERS "JOHN DOES", Individually and in their
Official Capacity, (the name John Doe being
fictitious, as the true name is presently unknown),

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice
of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons,
exclusive of the date of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to appear
or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 6, 2023

JON L. NORINSBERG, ESQ., PLLC

By:



Jon L. Norinsberg, Esq.
Attorneys for Plaintiffs
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Index No.

Plaintiff designates
NEW YORK County
as the place of trial

SUMMONS

The basis of venue is the
location where the
incident arose

Defendant(s)' Address:

The City of New York
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.
SHERNALERIA ECCLES, as Mother of ANTONIO
CASSEEM ARMSTRONG and proposed
Administrator of the Estate of ANTONIO CASSEEM
ARMSTRONG, and SHERNALERIA ECCLES,
Individually,

Plaintiff,

VERIFIED COMPLAINT

- against-

THE CITY OF NEW YORK, NYPD POLICE
OFFICERS "JOHN DOES", Individually and in their
Official Capacity, (the name John Doe being
fictitious, as the true name is presently unknown),

Defendants

-----X

Plaintiff, SHERNALERIA ECCLES, as mother of decedent ANTHONY CASEEM
ARMSTRONG and proposed Administrator of the Estate of ANTONIO CASSEEM
ARMSTRONG Deceased, and SHERNALERIA ECCLES, individually ("Plaintiff" or "Ms.
Eccles"), by their attorneys, JON L. NORINSBERG, ESQ. PLLC, complaining of the defendants,
upon information and belief, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action is brought by the Estate of Antonio Casseem Armstrong ("Plaintiff's
Decedent"), who was brutally killed by New York City Police Department ("NYPD") officers on
October 6, 2021, at approximately 8:30 a.m., at his apartment 200 West 147th Street, Apartment
5A, New York, NY 10039.

2. Mr. Armstrong's estate now seeks redress under New York State law and Federal law for the injuries caused by the conduct of the officers involved.

3. In this action, Plaintiff seeks: (i) compensatory damages for wrongful death, physical injury, psychological and emotional distress, and financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled law; and (iii) such other and further relief, including costs and attorneys' fees, as this Court deems equitable and just.

JURISDICTION AND VENUE

4. This action is brought for violations of Mr. Armstrong's rights under New York State common and statutory law, as well as violations of Mr. Armstrong's constitutional rights under Federal law.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

6. Pursuant to CPLR §§ 503 and 504, the venue is proper in New York County because it is the county in which the events giving rise to this action took place.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

7. Plaintiff served a Notice of Claim upon the City of New York within ninety (90) days of the subject accident.

8. Plaintiff Shernaleria Eccles, as Administrator of the Estate of Antonio Casseem Armstrong is scheduled to appear for an examination pursuant to § 50-h of New York's General Municipal Law on date to be agreed upon by the parties following the granting of Letters of Administration in Surrogate's Court.

9. More than thirty (30) days have elapsed since Plaintiff served her Notice of Claim

and the City has not offered adjustment or payment thereof.

10. At the time the Notice of Claim was filed, Plaintiff was unable to obtain the names of the NYPD officers involved in the events on October 6, 2021, that resulted in the death of Antonio Casseem Armstrong.

11. As of the filing of this Complaint, Plaintiff is still unable to obtain the names of the NYPD officers involved in the events on October 6, 2021, that resulted in the death of Antonio Casseem Armstrong. Plaintiff intends to file an amended complaint naming these individual officers as defendants in the action as soon as their identities become known.

JURY DEMAND

12. Plaintiff demands a trial by jury in this action on each and every one of her claims for which a jury trial is legally available.

THE PARTIES

Plaintiffs

13. ANTONIO CASSEEM ARMSTRONG was a 23-year-old father. At the time of his death on October 6, 2021, he resided at 200 West 147th Street, Apartment 5A, New York, NY 10039.

14. SHERNALERIA ECCLES, mother of ANTONIO CASSEEM ARMSTRONG, is in the process of being appointed by the Surrogate's Court as the Administrator of Mr. Armstrong's Estate. She resides at 55 Babcock Lane, Willingboro, NJ 08046, in the County of Burlington, in the State of New Jersey.

Defendants

15. THE CITY OF NEW YORK (the "City") is a municipal entity created and authorized under the laws of the State of New York.

16. The CITY OF NEW YORK is authorized by law to maintain a police department, and does maintain the New York City Police Department (“NYPD”), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers and detectives.

17. Defendant NYPD Police Officers JOHN DOES are employees of the City of New York, who brutally shot and killed plaintiff decedent, ANTONIO CASSEEM ARMSTRONG.

18. At all times hereinafter mentioned, the individually named defendants, NYPD Police Officers “JOHN DOES”, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

19. At all times relevant herein, defendants JOHN DOES, have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

STATEMENT OF FACTS

20. On October 6, 2021, at approximately 8:30 A.M., plaintiff ANTONIO CASSEEM ARMSTRONG (“Decedent” or “Mr. Armstrong”), was lawfully in his apartment, 200 West 147th Street, Apartment 5A, New York, NY 10039, in the County of New York, in the City and State of New York.

21. At the aforementioned time and place, Defendants, NYPD POLICE OFFICERS “JOHN DOES”, raided plaintiff decedent, ANTONIO CASSEEM ARMSTRONG’s, apartment and held him against his will.

22. Plaintiff Decedent, ANTONIO CASSEEM ARMSTRONG, was then brutally

assaulted/battered and shot by gun by the defendant and/or defendants by and through their agents, servants and/or employees.

23. Plaintiff Decedent, ANTONIO CASSEEM ARMSTRONG, was assaulted/battered and shot by gun, without any justification and without cause and without excuse.

24. Thereafter, defendant NYPD POLICE OFFICERS “JOHN DOES” lied about the facts and circumstances leading up to Decedent ANTONIO CASEEM ARMSTRONG’s shooting.

25. The physical evidence at the scene directly contradicted the stories told by defendant NYPD POLICE OFFICERS “JOHN DOES” to justify their shooting of Mr. Armstrong.

26. The forensic evidence at the scene directly contradicted the stories told by defendant NYPD POLICE OFFICERS “JOHN DOES” to justify their shooting of Mr. Armstrong.

27. The accounts of an eyewitness inside of the apartment directly contradicted the stories told by defendant NYPD POLICE OFFICERS “JOHN DOES” to justify their shooting of Mr. Armstrong.

28. That, at all times hereinafter mentioned and on October 6, 2021, and for sometime prior thereto, defendants, NYPD POLICE OFFICERS “JOHN DOES”, were New York City police officers, supervisors and/or agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, working in the scope and course of their employment as a New York City Police Officer, and was employed by the defendant, THE CITY OF NEW YORK.

20. The aforementioned shooting of the plaintiff’s decedent, ANTONIO CASSEEM ARMSTRONG, was carried out and committed by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants.

21. By reason of the foregoing, the plaintiff’s decedent, ANTONIO CASSEEM ARMSTRONG, was injured; was rendered sick, sore, lame and disabled; was caused to undergo

great conscious pain and suffering until the moment of his wrongful death, when he died on October 6, 2021, as a direct and proximate result of the injuries inflicted upon his person, due to the conduct of the defendant and/or defendants as noted above.

FIRST CAUSE OF ACTION
(Assault)

22. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

23. Defendants without just cause, willfully and maliciously threatened to use physical force against Mr. Armstrong, causing him to fear imminent bodily harm and ultimately causing his death.

24. Defendants committed the foregoing acts intentionally, willfully, and with a callous disregard for plaintiff's rights, and are therefore liable for punitive damages.

SECOND CAUSE OF ACTION
(Battery)

25. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

26. Defendants without just cause, willfully and maliciously used physical force against Mr. Armstrong, causing him to suffer harmful, offensive bodily contact, and causing his death.

27. There was no excuse or justification for defendants' unlawful use of excessive force.

28. Defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for Mr. Henry's rights, and are therefore liable for punitive damages.

THIRD CAUSE OF ACTION
(Wrongful Death)

29. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

30. The acts of the Defendants, alleged herein, wrongfully caused the death of plaintiff ANTONIO CASSEEM ARMSTRONG.

31. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

32. As a consequence, Plaintiff has suffered damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
(Conscious Pain and Suffering)

33. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

34. The acts of the Defendants, alleged herein, wrongfully caused and permitted Mr. ARMSTRONG to suffer physical, mental, and emotion pain, continuing until his death.

35. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

36. After being beaten by defendant officers, Plaintiff's Decedent ANTONIO CASSEEM ARMSTRONG remained conscious and endured extreme pain and suffering, prior to his death.

FIFTH CAUSE OF ACTION
(Excessive Force Under 42 U.S.C. § 1983)

37. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

38. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff ANTONIO CASSEEM ARMSTRONG constitutional rights.

39. As a result of the foregoing, plaintiff ANTONIO CASSEEM ARMSTRONG sustained, *inter alia*, severe pain and suffering, loss of life, bodily injuries, emotional distress, and deprivation of his constitutional rights.

SIXTH CAUSE OF ACTION
(Failure to Intervene Under 42 U.S.C. §1983)

40. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

41. Defendant police officers had an affirmative duty to intervene to protect the constitutional rights of plaintiff ANTONIO CASSEEM ARMSTRONG from being violated by other police officers in their presence.

42. Defendant police officers violated plaintiff ANTONIO CASSEEM ARMSTRONG's constitutional rights in the presence of their police colleagues.

43. Defendant police officers had reason to know plaintiff ANTONIO CASSEEM ARMSTRONG's constitutional rights were being violated.

44. Defendant police officers had a realistic opportunity to intervene to prevent the harm from occurring to plaintiff ANTONIO CASSEEM ARMSTRONG but failed to do so.

45. Notwithstanding this opportunity, defendant police officers failed to intervene to prevent the violations of plaintiff ANTONIO CASSEEM ARMSTRONG's constitutional rights.

46. As a result of the foregoing, plaintiff ANTONIO CASSEEM ARMSTRONG sustained, *inter alia*, severe pain and suffering, bodily injuries, loss of life, emotional distress, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION
(Deliberate Indifference to Training Under 42 U.S.C. § 1983)

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs of this Complaint with the same force and effect as though fully set forth and length herein.

48. Defendants owed a duty to the public at large, including but not limited to plaintiffs, to exercise reasonable care in the selection, hiring and retention of all its employees, and in particular, Police officers.

49. Defendant City of New York was exhibited deliberated indifference in failing to properly train its Police Officers, including Defendant Police Officers, regarding their duties and responsibilities for discharging their weapons and/or utilizing excessive force.

50. Specifically, Defendant City of New York was deliberately indifferent in failing to properly train its Police Officers, including Defendant Police Officers, regarding the mandatory rules, regulations, guidelines and procedures that must be followed by the NYPD regarding the use of lethal force by officers.

51. Had defendant City of New York properly trained defendant Police Officers, plaintiff would not have died.

52. Had defendant City of New York used reasonable care in supervising Defendant Police Officers, they would have known that they were patently unqualified to serve in their positions and they would have reassigned defendant Police Officers to a position that did not pose a substantial risk of harm to members of the public at large.

53. As a result of the foregoing, defendant City of New York breached its duty to use reasonable care in the training and supervision of police officers to care for members of the public at large.

54. As a result of defendant City of New York's negligence in hiring Defendant Police Officers, Plaintiff was subjected to an unlawful and unjustified shooting, and was not provided proper, timely care, and subsequently died.

55. In in failing to properly train and supervise Defendant police officers, defendant City of New York breached its duty to the public at large, and to Plaintiff Decedent ANTONIO CASSEEM ARMSTRONG, in particular, to use reasonable care in the selection, retention, training and supervision of its employees.

EIGHT CAUSE OF ACTION
(Deliberate Indifference to Medical Needs Under 42 U.S.C. § 1983)

56. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

57. Defendant Police Officers owed a duty to plaintiff to provide medical care in the event plaintiff had a medical emergency while in their custody.

58. Defendant Police Officers breached their duty to provide medical care to Plaintiff's Decedent ANTONIO CASSEEM ARMSTRONG, and exhibited a shocking indifference to his health, safety and welfare, when they delayed providing immediate medical attention to him after discharging their weapons, choosing instead to move his body from one location to another within the apartment, and position it in such a manner so as to create the false impression that decedent's injuries and death were due to self-inflicted wounds.

59. As a result of Defendants' deliberate indifference and flagrant violation of their duties, Plaintiff was denied prompt and immediate emergency medical care, and was caused to endure substantial pain and suffering prior to his death.

NINTH CAUSE OF ACTION
(Municipal Liability Under 42 U.S.C. § 1983)

60. Plaintiff repeats, reiterates and realleges each and every allegation in the aforementioned paragraphs with the same force and effect as if fully set forth herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

62. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to: a) using lethal force without just cause or provocation; b) discharging weapons without just cause or provocation; c) utilizing excessive force when attempting to effectuate arrests; d) falsifying evidence to cover up police misconduct; and e) allowing officers to carry and use their weapons in a violent and reckless manner, without any proper training, instructions or guidelines.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

66. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ANTONIO

CASSEEM ARMSTRONG was subjected to unlawful detention and excessive force resulting in permanent and disabling injuries.

67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ANTONIO CASSEEM ARMSTRONG's constitutional rights.

69. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of life without due process of law;
- B. Not to be subjected to deadly force without just cause or provocation;
- C. Not to have excessive force imposed upon him;
- D. Not to have summary punishment imposed upon him; and
- E. To receive equal protection under the law.

TENTH CAUSE OF ACTION

(Individual Defendant Officers' Violation of Plaintiff's AC § 8-802 Rights)

70. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

72. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be

secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

73. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, assaulted him, and then shot him to death.

74. By reason of the acts and omissions by defendants described above, Plaintiff endured substantial pain and suffering prior to his death and was caused to lose his life due to the unlawful actions of defendant police officers.

ELEVENTH CAUSE OF ACTION
(Individual Defendant Officers' Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights)

75. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

76. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

77. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

78. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC § 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described

herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

80. By reason of the acts and omissions by defendants described above, Plaintiff's Decedent endured substantial pain and suffering prior to his death, and was caused to lose his life due to the unlawful actions of defendant police officers.

TWELTH CAUSE OF ACTION
(City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC § 8-802 Rights)

80. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

81. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

82. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

83. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

84. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

85. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, assaulted him, and then shot him to death.

86. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION
(City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights)

87. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

88. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

89. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.

90. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

91. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

92. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC § 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

94. By reason of the acts and omissions by defendants described above, Plaintiff endured substantial pain and suffering prior to his death, and was caused to lose his life due to the unlawful actions of defendant police officers.

FOURTEENTH CAUSE OF ACTION
(City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC § 8-802 Rights)

96. Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

98. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

99. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

100. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC § 8 – 802 rights against unreasonable search and seizure and

excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

80. By reason of the acts and omissions by defendants described above, Plaintiff endured substantial pain and suffering prior to his death, and was caused to lose his life due to the unlawful actions of defendant police officers.

80. By reason of the acts and omissions by defendants described above, Plaintiff endured substantial pain and suffering prior to his death, and was caused to lose his life due to the unlawful actions of defendant police officers.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff, SHERNALERIA ECCLES, as mother of decedent ANTHONY CASEEM ARMSTRONG and proposed Administrator of the Estate of ANTONIO CASSEEM ARMSTRONG Deceased, and SHERNALERIA ECCLES individually, demands judgment against the Defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$20,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$20,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

Dated: New York, New York
October 6, 2023

JON L. NORINSBERG, ESQ., PLLC

By: _____


Jon L. Norinsberg, Esq.

Attorneys for Plaintiffs
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New York, New York 10022
Tel.: (212) 791-5396
Fax: (212) 656-1889
jon@norinsberglaw.com

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

VERIFICATION

[illegible]

The undersigned, an attorney admitted to practice in the courts of the State of New York, affirms the following to be true under penalty of perjury:

Affirmant is JON L. NORINSBERG, ESQ., attorney of record for plaintiff, SHERNALERIA ECCLES, as Mother of ANTONIO CASSEEM ARMSTRONG and proposed Administrator of the Estate of ANTONIO CASSEEM ARMSTRONG, and SHERNALERIA ECCLES, Individually.

Affirmant has read the foregoing and knows the contents thereof; the same is true to affirmant's own knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters affirmant believes it to be true. This verification is made by affirmant and not by plaintiff, SHERNALERIA ECCLES, as Mother of ANTONIO CASSEEM ARMSTRONG and proposed Administrator of the Estate of ANTONIO CASSEEM ARMSTRONG, and SHERNALERIA ECCLES, Individually, because she is not now located in the county where affirmant's office is located.

The ground of affirrant's belief as to all matters not stated upon affirrant's knowledge are as follows: records in affirrant's possession.

Dated: New York, New York
October 6, 2023



Jon L. Norinsberg, Esq.